PURCHASE AND SALE AGREEMENT

VANCOUVER, WASHINGTON – 3.646+/- ACRES

This Purchase and Sale Agreement ("**Agreement**") is effective January ___, 2025 (**"Effective Date"**), by and between **VANCOUVER SCHOOL DISTRICT,** a _____ ("**Seller**"), and **PDC SEATTLE LPIV BB/TH, LLC**, a Delaware limited liability company, or its assignee ("**Buyer**"), wherein Seller and Buyer agree as follows:

1. GENERAL.

1.01. The Property. Seller owns the real property commonly known as a portion of Tax Lot 147389000 located in the City of Vancouver, Washington, and all improvements thereon, and further described/depicted in the attached **Exhibit "A"** ("**Sale Property**"). The Sale Property shall include, without limitation, development rights and entitlements, development plans, construction agreements, plans and specifications, and all other improvements with respect to the Sale Property, if any, all of which Seller shall cause to be assigned to Buyer, upon Buyer's request, on or after close of escrow herein.

1.02. Purpose. The purpose of this Agreement is to provide for the purchase and sale of the Sale Property, and to establish the terms and conditions thereof.

1.03. Exchanges. Either party may prefer to exchange rather than sell or buy. The parties will cooperate in that regard, but the non-exchanging party shall not be required to incur any additional cost, liability, or expense. The non-exchanging party shall not be required to take title to any property which it is not ultimately acquiring.

2. SALE PROPERTY.

2.01. Agreement of Sale. Seller agrees to sell, and Buyer agrees to purchase, the Sale Property on the terms and conditions specified in this Agreement.

2.02. Price. The purchase price ("**Purchase Price**") of the Sale Property shall be One Million Five Hundred Eighty Eight Thousand Two Hundred and No/100 Dollars ($1,588,200.00) based upon 3.646 gross acres.

2.03. Terms of Sale. The Purchase Price shall be paid in cash upon close of escrow. All cash amounts shall be in lawful money of the United States and shall include the Deposit as described in **Paragraph 2.05**.

2.04. Bonded Indebtedness. Seller covenants and agrees that Seller shall not cause or consent to the imposition of any public improvement bonds and assessments which may encumber the Sale Property without Buyer's prior written consent which may be withheld in Buyer's sole discretion. Seller represents to its actual knowledge that other than as may be stated in the

preliminary title commitment, Seller is not aware of any existing or pending taxes, bonds or assessments which may encumber the Sale Property. In the event any new bonds or assessments arise (whether or not levied against the Sale Property) after execution of this Agreement, the payments for such bonds shall be prorated to close of escrow.

2.05. <u>Good Faith Deposit.</u> Upon full execution of this Agreement, Buyer agrees to concurrently open escrow and deposit with Title Company a promissory note in the form attached as **Exhibit "B"** in the sum of **$150,000.00** ("**Deposit Note**").

If Buyer notifies Seller on or before the end of the Study Period (as defined below) that Buyer does not wish to proceed with this transaction, or Buyer is silent, Title Company shall cancel escrow and return the Deposit Note to Buyer without any further action required by Buyer or Seller and this Agreement shall terminate.

Upon Buyer's approval of the contingencies on or prior to the expiration of the Study Period, Buyer shall deposit **$150,000.00** in cash (the "**Deposit**") into escrow, and thereupon the Deposit Note will be released to Buyer and the Deposit will be released to Seller and shall be nonrefundable except in the event of a default by Seller. If the transfer and sale of the Sale Property closes as contemplated by this Agreement, the Deposit shall be applied against the funds due from Buyer at close of escrow. After the end of the Study Period, if this Agreement is terminated due to a material breach by the Buyer, the entire Deposit shall be paid to Seller. Alternatively, after the end of the Study Period, if this Agreement is terminated because Seller is unable or unwilling to close escrow, the entire Deposit shall be refunded to Buyer.

Within five (5) business days after the Effective Date, Buyer shall deliver to escrow independent consideration in the amount of One Hundred and 00/100 DOLLARS ($100.00) (the "**Independent Consideration**"), which shall be immediately released and paid to Seller, without any further instruction to escrow. The Independent Consideration shall be considered completely nonrefundable to Buyer in all events, it being the intent of Seller and Buyer to recognize that such amount has been bargained for and agreed to as independent consideration for Buyer's exclusive right to purchase the Property pursuant to and in accordance with this Agreement, for the Study Period and for Seller's execution and delivery of this Agreement.

2.06. <u>LIQUIDATED DAMAGES.</u> IN THE EVENT THE SALE OF THE PROPERTY AS CONTEMPLATED HEREUNDER IS NOT CONSUMMATED BY REASON OF A DEFAULT OF BUYER UNDER THIS AGREEMENT, THE DEPOSIT (INCLUDING ALL INTEREST EARNED FROM THE INVESTMENT THEREOF, IF ANY) SHALL BE PAID TO AND RETAINED BY SELLER AS LIQUIDATED DAMAGES AND AS SELLER'S SOLE AND EXCLUSIVE REMEDY UNDER THIS AGREEMENT, AT LAW OR IN EQUITY AS A RESULT OF SUCH DEFAULT. THE PARTIES ACKNOWLEDGE THAT SELLER'S ACTUAL DAMAGES IN THE EVENT THAT THE SALE IS NOT CONSUMMATED WOULD BE EXTREMELY DIFFICULT OR IMPRACTICABLE TO DETERMINE. THEREFORE, BY SEPARATELY INITIALING THIS SECTION, THE PARTIES ACKNOWLEDGE THAT THE DEPOSIT HAS BEEN AGREED UPON, AFTER NEGOTIATION, AS THE PARTIES' REASONABLE ESTIMATE OF SELLER'S DAMAGES AND AS SELLER'S SOLE AND

EXCLUSIVE REMEDY UNDER THIS AGREEMENT, AT LAW OR IN EQUITY AGAINST BUYER IN THE EVENT THE CLOSING DOES NOT OCCUR BY REASON OF BUYER'S DEFAULT AS PROVIDED HEREIN. BUYER AND SELLER ACKNOWLEDGE THAT THEY HAVE READ AND UNDERSTOOD THE ABOVE PROVISION COVERING LIQUIDATED DAMAGES, AND THAT EACH PARTY WAS REPRESENTED BY COUNSEL WHO EXPLAINED THE CONSEQUENCES OF THIS LIQUIDATED DAMAGES PROVISION AT THE TIME THIS AGREEMENT WAS EXECUTED. IN NO EVENT SHALL THE BUYER BE LIABLE FOR ANY SPECIAL, CONSEQUENTIAL, INDIRECT OR PUNITIVE DAMAGES PURSUANT THIS THIS AGREEMENT.

Seller's Initial _____ Buyer's Initial _____

3. ESCROW.

3.01. Opening. The purchase and sale of the Sale Property shall be consummated by means of an escrow which is to be opened at Fidelity National Title Company, 655 West Columbia Way, Suite 200, Vancouver, Washington 98660, Melissa Miller, (email: meliisa.miller@fnf.com) ("**Title Company**") immediately after execution of this Agreement.

3.02. Closing. Escrow shall close no later than thirty (30) days following the expiration of the Study Period, which date shall be referred to herein as the "**Scheduled Closing Date**". Any extensions beyond that date shall require the written consent of Buyer and Seller. The date of closing shall be the date the Statutory Warranty Deed records in Clark County and shall be referred to herein as the "**Closing Date**".

3.03. Instructions. The escrow instructions given Title Company shall be consistent with the terms of this Agreement, and shall provide that as between the parties, the terms of this Agreement shall prevail if there is any inconsistency.

3.04. Costs. Seller shall bear the entire expense of the transfer and excise taxes, the cost of the standard Owners ALTA 2006 form title policy, and one-half of the escrow fees. Buyer shall bear the expense of recording fees, one-half of the escrow fees, and the entire cost of the extended ALTA increment of the title insurance premium, together with the cost of an ALTA survey ("**Survey**") or any inspection necessary for an extended ALTA 2006 form policy, and any endorsements requested by Buyer. The Survey will be certified to the Buyer, Seller and Title Company, and will show: (i) a metes and bounds description of the Sale Property, (ii) the area, boundaries and dimensions of the Sale Property, (iii) any encroachments on the Sale Property, (iv) the location of all easements, existing or proposed, building restrictions, architectural guidelines, existing or proposed, or any other ordinance or law that would impact the development of improvements on the Sale Property, and (v) the acreage and square footage of the Sale Property. The Survey, if any, shall be performed to ALTA/ACSM standards and delivered to Buyer upon completion.

3.05. Prorations. All charges and credits with respect to the Sale Property, including

without limitation real property taxes and bond payments, shall be prorated to close of escrow.

4. CONDITIONS TO CLOSE OF ESCROW.

4.01. General. The provisions of this **Paragraph 4** are conditions precedent to the close of the escrow described in **Paragraph 3** and unless otherwise provided expressly or by context, are covenants.

4.02. Title. Seller shall cause title to be conveyed to Buyer pursuant to a Statutory Warranty Deed subject only to current taxes and other exceptions approved by Buyer pursuant to **Paragraph 4.03.** Seller will make reasonable efforts to cause Title Company to be willing to issue its extended coverage Owners ALTA 2006 form policy of title insurance insuring title in Buyer with liability in the amount of the Purchase Price. The policy shall list only the taxes and exceptions set forth in **Paragraph 4.03** in addition only to the printed exceptions common to such ALTA policies. Seller agrees to provide an owner's affidavit as requested by the Title Company in order to issue the policy. Seller further agrees to provide or cause to be provided an estoppel in a form agreed to by the parties from any association under any conditions, covenants and restrictions that affect the Sale Property.

4.03. Approval of Encumbrances. With respect to existing encumbrances, Buyer shall obtain a Preliminary Title Commitment from the Title Company, together with legible copies of all exceptions shown therein. Buyer shall provide written notice to Seller of its approval or disapproval of such Commitment within sixty (60) days after the Effective Date. All exceptions shown in the Preliminary Title Commitment and any supplement thereto shall be Permitted Exceptions unless Seller agrees within fifteen (15) days after the receipt of Buyer's written notice to remove any exception objected to by Buyer. Notwithstanding the foregoing, Seller shall remove and satisfy before Closing all mortgages and deeds of trust.

4.04. Cash and Deed. Buyer shall deposit with Title Company the cash and documents required from Buyer in connection with the escrow and shall cause Title Company to deliver the purchase consideration to Seller upon the close of escrow. Seller shall cause Title Company to be ready, willing and able to record and deliver to Buyer the duly executed and acknowledged Statutory Warranty Deed referred to in **Paragraph 4.02** and the other documents required by this Agreement.

4.05. Failure of Title; Casualty; Condemnation. If Seller is unable to convey marketable title in the aforesaid condition within the allowable time to close escrow, or if the Sale Property or any portion thereof shall have been destroyed or materially damaged by whatever cause, or is subject to condemnation or eminent domain proceedings, or the threat thereof, then Buyer may either accept the Sale Property in its then state and condition of title or terminate this transaction and receive a refund of all deposits herein. If Buyer elects to terminate as aforesaid, Buyer shall not have any claim against Seller or the Sale Property and the Deposit shall be immediately returned to Buyer without any further action required by Buyer or Seller. If Buyer elects to proceed with this transaction, Buyer shall receive all insurance proceeds and/or

condemnation or eminent domain proceeds at close of escrow. Seller shall be deemed able to deliver (or have delivered) marketable title herein required if and when Title Company stands ready to issue (or has issued) upon the closing hereof its extended ALTA 2006 form Policy of Title Insurance showing title vested in Buyer subject only to the standard printed exceptions of such policy and to the specific exceptions approved by Buyer as set forth in this Agreement.

4.06. <u>Study Period.</u> Buyer shall have one hundred twenty (120) days after the Effective Date ("**Study Period**") within which to study the condition of the Sale Property and the feasibility of developing it. Seller shall deliver to Buyer all of the material documents with respect to the Sale Property within the Seller's possession within five (5) business days from the Effective Date of this Agreement ("**Document Delivery Date**"). Buyer shall perform such studies at its cost. During such period, Buyer and its representatives may enter the Sale Property to inspect, test, and survey it. Buyer shall repair any damage caused by same, and Buyer agrees to indemnify and hold Seller harmless from any claims, including attorneys' fees, caused by such entry and activities, provided that Buyer's indemnification obligations shall not extend to any claims arising from, or to the extent of, (i) the acts of Seller or its employees, contractors or agents, or (ii) the mere discovery by Buyer of any defects in the Sale Property or any hazardous materials located thereon. Buyer shall name Seller as an additional insured on Buyer's general liability insurance policy and provide evidence of such coverage to Seller prior to entry on the Sale Property by Buyer and/or its representatives. Buyer, in its discretion, shall approve or disapprove the results of such studies in writing to Seller on or before the end of the Study Period (Buyer's silence shall be deemed disapproval). If Buyer does not purchase the Sale Property, Buyer shall promptly return all documents to Seller. If Seller discovers additional material documents after commencement of the Study Period, the Study Period shall be extended, if necessary, so that Buyer has a minimum of thirty (30) days to review and evaluate any such additional documents.

Buyer may extend the Study Period to confirm the Sale Property is suitable for Buyer's intended use for three (3) thirty (30) day periods by depositing an additional **$10,000.00** for each extension (each, an "**Extension Payment**", and collectively, "**Extension Payments**"), in cash into escrow five (5) days prior to the expiration of the Study Period or each prior extension period, as applicable. The Extension Payments shall not be refundable except in the event of a default by Seller, but the first two Extension Payments shall be applicable to the Purchase Price (the third Extension Payment shall not be applicable to the Purchase Price). If Seller cannot or will not close escrow after Buyer waives contingencies, all Extension Payments made by Buyer shall be released to the Buyer.

On or before sixty days after the Effective Date, Buyer will initiate and fund the "Boundary Line Adjustment" (BLA) process to combine this parcel with the abutting property to the west (Parcel # 147390000) which is owned by the Buyer.

4.07. <u>Governmental Approvals.</u> During the Study Period, Seller will make reasonable efforts to cooperate with Buyer regarding any applications reasonably required by Buyer in connection with Buyer's attempts to obtain use, building, or other necessary Mitigated Determination of Non Significance permits and approvals (collectively the "**Development Approvals**"), all of which shall be at Buyer's sole cost, with respect to the Sale Property, whether

from private persons or entities such as Native American tribes, or governmental entities such as the City of Vancouver or Clark County. However, if such applications or other actions of Buyer would bind Seller or the Sale Property, the effectiveness of such approvals or other actions by Buyer shall be conditioned upon close of escrow unless Seller agrees otherwise.

4.08. **Development Documents**. On or before the Document Delivery Date, Seller shall provide Buyer with complete copies of all documents listed in **Section 1.01** above ("**Development Documents**"). On or before the end of the Study Period, or any extension thereof, as a condition precedent to Buyer's obligation to approve or disapprove the Sale Property hereunder, Seller shall obtain assignments of all Development Documents in favor of Buyer, including without limitation all mining or construction agreements, plans, and permits, and Seller shall deposit such assignments in escrow prior to the end of the Study Period. Buyer shall prepare the assignments as needed, and Seller shall submit such assignments to the assigning parties.

On or before the Closing Date, Seller shall execute and deliver to Title Company an Assignment in the form of **Exhibit "C"**, assigning to Buyer the Development Documents, and all other documents described therein, including all original documentation related to the assigned items. On or before the Closing Date, Seller shall execute and deliver to Title Company a Bill of Sale in the form of **Exhibit "D"**, conveying unencumbered title to Buyer of the personal property described therein, including all original purchase and title documentation, if any, related to the conveyed items.

5. POSSESSION.

Possession of the Sale Property shall be given to Buyer upon close of escrow. Seller shall be responsible for terminating any leases, if any, and obtaining possession of the Sale Property prior to close of escrow.

6. BROKERS.

Buyer and Seller represent that they have not engaged nor are aware of any person entitled to any brokerage commission or finder's fee in connection with this Agreement. Each party agrees to indemnify the other party against any claim asserted against or adjudged against the other party, for any brokerage commission or finder's fee or any like compensation occasioned by or as a result of any act or omission of each such party, including all attorney's fees, costs, expenses, and any other fees incurred by, charged against, or adjudicated against, the other party, whether or not suit is filed, which are related to this indemnity agreement or enforcement thereof.

7. WARRANTIES.

7.01. **Toxic Substances.** Seller hereby warrants that to the best of its knowledge there is not any contamination, hazardous waste or toxic substance in existence on or below the surface of the Sale Property, including without limitation, contamination of the soil, sub-soil or groundwater which constitutes a violation of any law, rule or regulation of any government entity having jurisdiction thereof or which exposes Buyer to liability to third parties.

7.02 Physical Condition of Property. Seller is selling the Sale Property AS IS and makes no warranty about the Sale Property's physical condition except as otherwise provided herein, it being understood that Buyer is relying on Buyer's own investigations and studies to determine the physical condition of the Sale Property. Seller warrants that to the best of Seller's knowledge there are no defects in the land or improvements comprising the Sale Property except as otherwise disclosed in the Seller's Property Disclosure Statement.

7.03. Threatened Actions. There are, and at the close of escrow there will be, no pending actions, suits, arbitrations, claims or proceedings, at law, in equity or otherwise, affecting, or which may affect, all or any portion of the Sale Property or in which Seller is or will be a party by reason of Seller's ownership of the Sale Property. Seller has no actual knowledge of the existence of any threatened or contemplated actions, claims or proceedings or of the existence of any facts which might give rise to any such actions, claims or proceedings.

7.04. Compliance with Law. To Seller's actual knowledge all applicable laws, ordinances, rules, requirements, regulations, building codes, mining rules and environmental rules of any governmental agency, body or subdivision thereof bearing on the Sale Property and the construction of the improvements will have been complied with.

7.05. Utilities. To Seller's actual knowledge, all utilities including water, sanitary sewer, storm water drainage, telephone, electricity and other utility equipment facilities and services required by law are available to serve Property and are available within 100 feet of the property line of the Sale Property, or as further agreed between the parties. To Seller's actual knowledge, no fact or condition exists which would result in the termination or impairment in the furnishing of utility services to the Sale Property before or after close of escrow. Seller has not received any notice from any individual or entity indicating that the lines of any of such facilities are not in full operating condition and available to the Sale Property.

7.06. Insurance Notices. Seller has not received any notice from any of Seller's insurance carriers of any defects or inadequacies in the Sale Property, or any portion thereof, which would adversely affect the insurability of the Sale Property or the cost of any such insurance. There are no pending insurance claims with respect to all or any portion of the Sale Property.

7.07. Service Contracts. There are no service contracts, maintenance agreements or brokerage agreements with respect to the Sale Property or other agreements with respect to the Sale Property to which Buyer shall be subject as owner of the Property upon the Closing Date. Seller shall cause to be discharged all mechanics' liens, and materialmen's liens arising from any labor or materials furnished to the Sale Property (unless as a result of work done by Buyer, its agents or contractors), prior to the close of escrow.

7.08. OFAC. Seller (which includes its partners, members, principal stockholders, any other constituent entities or persons, overseers, trustees and senior executive officers) has not been designated as a "specifically designated national and blocked person" on the most current list published by the U.S. Treasury Department Office of Foreign Asset Control at its official website,

http://www.treas.gov/ofac/t11 or at any replacement website or other replacement official publication of such list. Seller is not in violation of compliance with the regulations of the Office of Foreign Asset Control of the Department of Treasury and any statute, executive order (including the September 24, 2001 Executive Order Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism), or any other governmental action relating thereto. This representation will be true at all times from the time this is made and until all obligations under the Agreement are satisfied. In connection with this representation, no later than ten (10) days prior to Closing, Seller shall provide to Buyer all information required by Buyer to confirm Seller's compliance with this provision. Seller represents that all OFAC information provided by Seller to Buyer in connection with this Agreement is true and complete.

7.09. Interest in Sale Property. Except as expressly set forth in this Agreement, there are no leases, licenses or other occupancy agreements in effect in which Seller has granted any party rights to possession or use of the Sale Property or any portion thereof, nor has Seller given any party an option, right of first refusal, or any other rights to purchase any portion of the Sale Property.

7.10. Definition of Knowledge. Anytime the phrase "**Seller's knowledge**" is used herein it is the intent that this shall be measured on a best of knowledge basis of the Seller, without any requirement of due inquiry or investigation, which is the person most knowledgeable concerning the Sale Property.

7.11. Indemnification. Seller hereby agrees to indemnify and defend Buyer against any claim or lien, including all attorney's fees, costs, and expenses, incurred by Buyer relating to (i) the Sale Property which result from any breach by Seller of this Agreement, and (ii) any claims related to the Sale Property arising prior to the Closing Date, provided, however, that Seller's indemnification obligations shall not extend to any claims arising from, or to the extent of, the acts or omissions of Buyer or its employees, contractors or agents.

7.12. As-Is, Where-Is. Except as stated otherwise herein, Buyer acknowledges that Buyer is acquiring the Sale Property in its "AS-IS" condition as of the date of close of escrow, solely in reliance on its own inspections and examination, and its own evaluation of the Sale Property. There are no representations, warranties, covenants, understandings or agreements among the parties to this Agreement regarding the Sale Property or the transfer of the Sale Property contemplated by this Agreement other than those incorporated in this Agreement. Seller has provided Form 17 completed to the best of Seller's knowledge.

8. RISK OF LOSS.

From and after the close of escrow, Buyer assumes and shall bear all risks of loss to the Sale Property.

9. MISCELLANEOUS.

9.01. Choice of Law, Courts, Attorneys' Fees. This Agreement has been executed in

Clark County, Washington, and shall be governed by and construed in accordance with the laws of the State of Washington. Any legal action related to this Agreement shall be commenced in the County in which the Sale Property is located. The successful party in such proceedings shall be entitled to reasonable attorneys' fees and costs, expert witness fees and costs, and all related costs incurred in such action, whether at pre-trial, trial, on appeal, or to enforce any resulting decision or related judgment, or in any arbitration or bankruptcy proceeding.

9.02. Assignments. Buyer may assign this Agreement in whole or in part, voluntarily or involuntarily, without prior consent of Seller, to Carl D. Panattoni, Adon Panattoni, the Panattoni Living Trust dated April 8, 1998, or Panattoni Development Company, Inc., or any affiliate thereof, or any entity owned in part or controlled by any of them or to a third party unaffiliated with Panattoni Development Company, Inc., with which any of the above-referenced parties or affiliates have entered into a development agreement for the Sale Property. Any assignment shall not relieve Buyer of liability hereunder.

9.03. Time of Essence. Time is of the essence of this Agreement and of the escrow provided for herein.

9.04. Integration; Counterparts. This Agreement, including the Exhibits referred to herein, contains the entire agreement of the parties hereto, and supersedes any prior written or oral agreements between them concerning the subject matter contained herein. There are no representations, agreements, arrangements, or understandings, oral or written, relating to the subject matter which are not fully expressed herein. This Agreement may be modified only by a writing signed by the party against whom it is sought to be enforced. This Agreement may be executed in one or more counterparts, each of which shall be an original and all of which together shall constitute one and the same agreement.

9.05. Exhibits. All **Exhibits** to which reference is made are deemed incorporated into this Agreement as though fully set forth at length, whether or not actually attached.

9.06. Additional Documents. Each party shall execute and deliver such documents as may be reasonably requested by the other party to carry out the purpose and intent of this Agreement.

9.07. Notice. Any notice required or desired to be given by either party to this Agreement shall be in writing and shall be personally delivered to the address stated below (including delivery by overnight courier), or in lieu of personal delivery, may be sent by facsimile or may be given by depositing such notice in the United States mail, registered or certified, postage prepaid, addressed to the other at the address listed opposite such party's name at the end of this Agreement, or by email sent to the email address following the signature line of each party (provided that one of the other methods of providing notice as set forth in this Section 9.07 is also provided to the other party). Any notice given by facsimile shall also be sent by regular mail on the same day and shall be deemed to have been given on the day the facsimile is sent. Any notice given by registered mail shall be deemed to have been given on the third business day after its deposit in the United States mail. Any notice given by certified mail shall be deemed to have been given on the date

receipt was acknowledged to the postal authorities. Any notice given by email shall be deemed given on the date the email was sent. Any notice given by mail other than registered or certified mail shall be deemed given only if received by the other party and then on the date of receipt. Either party may, by written notice to the other in the manner aforesaid, change the address or telephone number to which notices addressed to it shall thereafter be faxed or mailed.

9.08. Dependency and Survival of Provisions. The respective warranties, representations, covenants, agreements, obligations, and undertakings of each party hereunder shall be construed as dependent upon and given in consideration of those of the other party and shall survive the close of escrow and the delivery of a deed.

9.09. Waiver. Waiver by one party of the performance of any covenant, condition or promise shall not invalidate this Agreement, nor shall it be considered to be waived by such party of any other covenant, condition, or promise hereunder. The waiver by either or both parties of the time for performing any act shall not constitute a waiver of the time for performing any other act or an identical act required to be performed at a later time. The exercise of any remedy provided by law and the provisions of this Agreement for any remedy shall not exclude other remedies unless they are expressly excluded.

9.10. Non-Foreign Affidavit And Excise Tax Affidavit. Seller agrees to deliver through the escrow a Non-Foreign Affidavit pursuant to Section 1445(b)(2) of the Internal Revenue Code in form and substance satisfactory to the parties, and both parties agree to execute a Real Property Excise Tax Affidavit as required by the State of Washington.

9.11. Neutral Construction. This Agreement has been negotiated with each party having the opportunity to consult with legal counsel and will not be construed against each party.

9.12. Remedies. In the event Seller defaults hereunder, Buyer shall have every legal and equitable remedy available under Washington law, which shall be cumulative, including without limitation the right of specific performance.

9.13 Limitation of Liability. No director, officer, employee, shareholder, representative, advisor or agent of Buyer or of any entity that has or acquires an interest in Buyer or is an assignee of Buyer, shall have any personal liability, directly or indirectly, under or in connection with the transaction contemplated by this Agreement or any agreement made or entered into pursuant to this Agreement, or any amendments to any of the foregoing made at any time before or after the date hereof. Seller and its respective successors and assigns shall look solely to Buyer and its assets for the payment of any claim or for any performance, and, on behalf of itself and its successors and assigns, Seller hereby waives any and all personal liability against the aforementioned persons.

[Signatures are on following pages]

IN WITNESS WHEREOF, this Agreement has been executed effective on date set forth above.

BUYER

PDC SEATTLE LPIV BB/TH, LLC,
a Delaware limited liability company

By: _____
_____, Local Partner

ADDRESS and TELEPHONE

Attn: Bart Brynestad or Travis Hale
1821 Dock Street, Suite 100
Tacoma, WA 98402
(206) 248-0555
(206) 248-0044 Fax

email: bbrynestad@panattoni.com
thale@panattoni.com

with a copy to:

Albert & Coss LLP
Attn: Anthony S. Coss
550 Howe Avenue, Suite 100
Sacramento, CA 95825
(916) 494-9254-0110
(916) 471-0110 Fax
acoss@albertcoss.com

SELLER

VANCOUVER SCHOOL DISTRICT,
a municipal corporation of the State of Washington

By: _____
Name: Dr. Jeff Snell
Its: Superintendent

EXHIBITS:

A DESCRIPTION OF SALE PROPERTY
B DEPOSIT NOTE
C ASSIGNMENT
D BILL OF SALE

EXHIBIT "A"

DESCRIPTION OF SALE PROPERTY

Title company will provide complete legal

EXHIBIT "B"

DEPOSIT NOTE

Parcel No. 147389000, Vancouver, WA

$150,000.00

January __, 2025

Vancouver, Washington

FOR VALUE RECEIVED, the undersigned ("Buyer") agrees to pay to the order of **First American Title Insurance Company** the sum of **One Hundred Fifty Thousand and No/100 Dollars ($150,000.00)** as follows:

_____ _____ days (3 days if not filled in) following mutual acceptance of the Purchase Agreement (as defined below).

__x__ Upon satisfaction or waiver of the inspection contingency stated in the Purchase Agreement.

_____ Other _____.

This Note is evidence of the obligation to pay earnest money under the Purchase and Sale Agreement (the "**Purchase Agreement**") dated January __, 2025 between Buyer and Seller, as defined in the Purchase Agreement, for the above real property located in **Vancouver, Washington.**

If this Note shall be placed in the hands of an attorney for collection, or if suit shall be brought to collect any of the balance due on this Note, Buyer promises to pay a reasonable attorney's fee as fixed by the Court, and all court and collection costs. This Note shall bear interest at the rate of twelve percent (12%) per annum after default.

Buyer's failure to pay the earnest money shall constitute Buyer's disapproval of the contingencies stated in the Purchase Agreement.

BUYER:

PDC SEATTLE LPIV BB/TH, LLC
a Delaware limited liability company

By: _____
_____, Local Partner

EXHIBIT "C"

ASSIGNMENT

THIS ASSIGNMENT ("**Assignment**") is made as of _____, by and between **VANCOUVER SCHOOL DISTRICT,** a _____ ("**Assignor**"), and _____, a Delaware limited liability company ("**Assignee**").

FOR GOOD AND VALUABLE CONSIDERATION, the receipt and sufficiency of which are hereby acknowledged, Assignor grants, sells, conveys, transfers and assigns unto Assignee all of Assignor's right, title and interest in, to and under the following items relating to that certain real property located in the **Clark County, Washington**, and more particularly described in **Exhibit A** attached hereto and incorporated herein by this reference (the "**Real Property**"):

(a) the design and development contracts, and other agreements described in **Exhibit B** attached hereto and incorporated herein by this reference ("**Contracts**");

(b) plans, drawings, and specifications for the improvements located on the Sale Property, including without limitation those items described in the attached **Exhibit B** ("**Plans**"); and

(c) any licenses, approvals, certificates, tradenames, permits and claims, including without limitation those items described in the attached **Exhibit B** ("**Permits**").

Assignor shall indemnify, protect, defend and hold Assignee harmless from and against any and all claims, demands, damages, losses, liabilities, costs and expenses (including reasonable attorneys' fees) arising in connection with the Contracts, Plans, and Permits, relating to the period prior to the date hereof. Assignee accepts the foregoing assignment and assumes the obligation to perform those obligations which are set forth in the Contracts which are due to be performed after close of escrow and which relate to the period after close of escrow and which are set forth in the copies of those documents provided to Assignee prior to the end of the Study Period, as defined in the Agreement ("**Assumed Obligations**") and shall indemnify, protect, defend and hold Assignor harmless from and against any and all claims, demands, damages, losses, liabilities, costs and expenses (including reasonable attorneys' fees) arising in connection with the Assumed Obligations arising in connection with the Contracts, Plans, and Permits, relating to the period after the date hereof.

Assignor covenants that it will, at any time and from time to time upon written request therefor, at Assignee's sole expense (except as provided above) and without the assumption of any additional liability therefor, execute and deliver to Assignee, and its successors and assigns, any new or confirmatory instruments and take such further acts as Assignee may reasonably request to fully evidence the assignment contained herein and to enable Assignee, and its successors and assigns, to fully realize and enjoy the rights and interests assigned hereby.

The provisions of this Assignment shall be binding upon, and shall inure to the benefit of, the successors and assigns of Assignor and Assignee, respectively.

This Assignment may be executed in any number of counterparts, each of which shall be deemed an original, but all of which when taken together shall constitute one and the same instrument.

The terms of this Assignment shall survive close of escrow.

Rest of the page left intentionally blank.

IN WITNESS WHEREOF, Assignor and Assignee have caused their duly authorized representatives to execute this Assignment as of the date first above written.

ASSIGNOR:

VANCOUVER SCHOOL DISTRICT,
a municipal corportation of the State of Washington

By: _____
Name: Dr. Jeff Snell
Its: Superintendent

ASSIGNEE:

_____, LLC
a Delaware limited liability company

By: _____
Name: _____
Its: _____

EXHIBIT A

To ASSIGNMENT

Legal Description of Real Property

EXHIBIT B

To ASSIGNMENT

Description of Contracts, Plans, and Permits

[**ADD LIST OF DOCUMENTS**]

EXHIBIT "D"

BILL OF SALE

EFFECTIVE _____, 202_, FOR GOOD AND VALUABLE CONSIDERATION, receipt of which is hereby acknowledged, the undersigned, **VANCOUVER SCHOOL DISTRICT,** a _____ ("**Seller**"), does hereby give, grant, bargain, sell, transfer, assign, convey and deliver to _____, a Delaware limited liability company ("**Buyer**"), the personal property identified on **Schedule A** attached hereto and incorporated herein by this reference, and all other personal property (if any), including all mining equipment, owned by Seller and located on or in that certain real property located in the **City of Vancouver, Clark County, Washington**, and more particularly described in **Schedule B** attached hereto and incorporated herein by this reference.

Seller warrants to Buyer that Seller owns all right, title and interest in the personal property identified on **Schedule A** attached hereto, free and clear of any lien, security interest or adverse claim. Seller further warrants to Buyer that no further documentation is needed to transfer title to Buyer.

Seller covenants that it will, at any time and from time to time upon written request therefor, without the assumption of any additional liability thereby, execute and deliver to Buyer, its nominees, successors and/or assigns, any new or confirmatory instruments and do and perform any other acts which Buyer, its nominees, successors and/or assigns, may reasonably request in order to fully assign and transfer to and vest in Buyer, its nominees, successors and/or assigns, and protect its or their rights, title and interest in and enjoyment of, all of the assets of Seller intended to be transferred and assigned hereby, or to enable Buyer, its nominees, successors and/or assigns, to realize upon or otherwise enjoy any such assets.

All references to "**Seller**" and "**Buyer**" herein shall be deemed to include their respective nominees, successors and/or assigns, where the context permits.

Rest of the page left intentionally blank.

SIGNATURE PAGE
Bill of Sale

SELLER:

VANCOUVER SCHOOL DISTRICT,
a _____

By: _____
Name: _____
Its: _____

BUYER:

_____, LLC
a Delaware limited liability company

By: _____
Name: _____
Its: _____

SCHEDULE A

Schedule of Personal Property

SCHEDULE B

Legal Description of the Real Property